



CHAPTER xcvi.

An Act to provide for the granting of superannuation allowances to the officers and servants of the Council of the metropolitan borough of Stepney and for other purposes.

A.D. 1905.

[11th July 1905.]

WHEREAS the area of Stepney in the administrative county of London (hereinafter referred to as "the borough") is a metropolitan borough and is under the management and control of the mayor aldermen and councillors of the borough (hereinafter referred to as "the Council"):

And whereas under and by virtue of the Superannuation (Metropolis) Act 1866 and the London Government Act 1899 the Council are empowered as successors of vestries of parishes and district boards of districts and other parochial bodies to grant annual allowances in the nature of superannuation allowances or gratuities to persons who shall have served in an established capacity as officers of the Council:

And whereas by the London (Existing Officers) Scheme 1900 it is provided that "subject to the provisions of the Superannuation (Metropolis) Act 1866 in computing the time of the service for the purposes of that Act of an officer of the council of a metropolitan borough who has been transferred by or under the London Government Act 1899 to that council from any other authority and who before the transfer was an officer to whom the Superannuation (Metropolis) Act 1866 applied any period during which the officer was in the service of that other authority shall be included":



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A.D. 1905.
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And whereas it is also provided by the aforesaid scheme that “if an officer or servant of any authority to which the Poor Law Officers’ Superannuation Act 1896 applies—

“ (a) is by or under the London Government Act 1899
“ transferred to the council of a metropolitan borough ;
“ and

“ (b) has made the annual contributions required to be made
“ under the said Act ;

“ the provisions of the said Act shall as respects that officer or
“ servant apply to the council of the metropolitan borough to
“ which he is transferred in like manner as nearly as may be as
“ they apply to guardians and the contributions of that officer or
“ servant shall be carried to and form part of the fund applicable
“ to the general expenses of the Council and the superannuation
“ allowances and gratuities under the said Act shall be paid out
“ of the general rate” :

And whereas in pursuance of the aforesaid scheme certain of the officers transferred to and now in the service of the Council are to the extent defined by such scheme entitled to the benefits conferred respectively by the Superannuation (Metropolis) Act 1866 or by the Poor Law Officers’ Superannuation Act 1896 or both :

And whereas since the coming into office of the Council all officers appointed by the Council (other than officers who were transferred by or under the London Government Act 1899 as aforesaid) have been appointed upon the understanding that no superannuation allowance or gratuity under the Superannuation (Metropolis) Act 1866 shall be attached to the office to which they have been appointed :

And whereas doubts have arisen as to whether certain persons transferred to or appointed by the Council are officers acting in an established capacity within the meaning of the Superannuation (Metropolis) Act 1866 and as to the powers and duties of the Council with reference to such persons and it is expedient that provision should be made with reference thereto as in this Act set forth :

And whereas it is expedient that a uniform practice should so far as possible be established for the granting by the Council of superannuation allowances to the whole of the officers and

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And whereas it is expedient that a uniform practice should so far as possible be established for the granting by the Council of superannuation allowances to the whole of the officers and

servants transferred to or appointed by the Council as aforesaid in manner provided by this Act: A.D. 1905.

And whereas it is expedient that the Council should be empowered to assist any society constituted from amongst its servants for the purpose of providing allowances to the members of such society during sickness or whilst suffering or recovering from the effects of an accident or to their families or representatives on their death by subscribing to the funds of such society:

And whereas an absolute majority of the whole number of the Council at a meeting held on the ninth day of November 1904 after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *East London Observer* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the costs and expenses of promoting the Bill for this Act should be charged on the general rate:

And whereas such resolution was published twice in the *East London Observer* a local newspaper published and circulating in the borough and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-first day of December 1904 being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the *Stepney Borough Council (Superannuation) Act 1905* and shall come into operation from

Short title
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A.D. 1905. and immediately after the thirty-first day of March one thousand nine hundred and six.

Interpreta-
tion.

2. In this Act the expression—

“Borough” means the metropolitan borough of Stepney as defined and described by the Borough of Stepney Order in Council 1900;

“Council” means the mayor aldermen and councillors of the borough;

“General rate” means the rate or rates levied and collected in the several parishes hamlets and liberties of the borough and defined by section 10 of the London Government Act 1899 as the general rate;

“Officer” means every officer in the service of the Council in an established capacity;

“Servant” means every servant or workman appointed by resolution and in the permanent employ of the Council;

“Emoluments” includes all fees poundage and other payments made to any officer or servant as such by the Council for his own use also the money value of any apartments rations or other allowance in kind appertaining to his office or appointment;

“Joint appointment” includes any office the tenure whereof is determined by the death removal resignation or incapacity of the holder of another office under the Council;

“Superannuation fund” means a fund to be established and administered by the Council in the manner described and provided in the section of this Act whereof the marginal note is “Superannuation fund.”

Title of
officers and
servants to
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tion allow-
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3. Subject to the provisions of this Act every officer and servant who shall become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body or of old age or who shall have attained the age of sixty years and have completed an aggregate service of forty years or who shall have attained the full age of sixty-five years shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale by this Act provided.

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An officer or servant shall not be entitled to an allowance on the ground of old age unless he has completed the full age of sixty years.

A.D. 1905.
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Where an officer or servant has attained the full age of sixty-five years and the Council are of opinion that it would be expedient in the interests of the public service that he should cease to hold his office or employment it shall be competent for them to require him to retire upon payment to him of the superannuation allowance to which he may be entitled under this Act.

Provided always that notwithstanding anything in this Act contained no superannuation allowance shall be granted to any officer or servant until such officer or servant shall have contributed to the superannuation fund at least one full year's contribution in pursuance of the provisions of this Act.

4. The scale of superannuation allowances to be made to an officer or servant under this Act shall be as follows (that is to say):—

Scale of
superannua-
tion allow-
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After ten years' service ten sixtieths of the average amount of his salary or wages and emoluments during the five years ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment;

After eleven years' service eleven sixtieths of such average amount;

And so on up to a maximum after forty or more years' service of forty-sixtieths of such average amount.

5. Subject to the deduction of the increased percentage amounts to be contributed in that behalf as hereinafter provided all continuous service by an officer or servant rendered immediately before his appointment by the Council or their predecessors under and as an officer or servant of any authority or authorities to which the Metropolis Management Acts 1855 to 1893 the Vestries Acts 1818 to 1853 the Public Health (London) Act 1891 the Public Health Acts the Public Libraries Acts 1892 and 1893 the Baths and Washhouses Acts 1846 to 1882 the Local Government Act 1888 the Local Government Act 1894 the Union Assessment Committee Acts the Valuation (Metropolis) Act 1869 the Municipal Corporations Act 1882 the London Government Act 1899 or one or more of such Acts apply or have applied and whether the duties or powers of such authority or authorities shall have been transferred

Reckoning
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Provided that no period of service shall be so aggregated and reckoned in a case where an officer or servant is unable to prove to the reasonable satisfaction of the Council within a period of six months from the passing of this Act or in the case of an appointment made by the Council subsequently to such passing within a period of three months from the date of such appointment that he has been in the service or employment of any such authority or authorities.

Forfeiture
for fraud
&c.

6. An officer or servant who is dismissed or resigns or otherwise ceases to hold his office or employment in consequence of any offence of a fraudulent character or of grave misconduct or who before he has under the provisions of this Act become entitled to do so voluntarily resigns his office or employment shall forfeit all claim to any superannuation allowance under this Act in respect of his previous service provided that in the case of any such officer or servant the Council may if they see fit return to him out of the superannuation fund a sum equal to the amount of all or part of his contributions under this Act.

Return of
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grant gra-
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7. An officer or servant who has not become entitled to a superannuation allowance and who loses his office or employment by reason of a reduction of staff or of any alteration of areas or boundaries or otherwise ceases to hold his office or employment by reason of bodily injury not occasioned by his own default or of any other cause whatever other than his own misconduct or voluntary resignation shall be entitled to receive a gratuity equal to the amount of all his contributions under this Act.

In any such case of loss of office or employment as in this section mentioned the Council may also if they see fit grant to an officer or servant a gratuity not exceeding twice the amount of his salary or wages and emoluments during the year ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment.

Provided that when such loss of office or employment occurs in a case in which the death resignation or insanity of one of the holders of a joint appointment vacates the office of the other the officer or servant whose office or employment is so vacated shall unless he is re-appointed by the Council and except where in

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the case of husband and wife the joint appointment is terminated owing to the misconduct of one of them be entitled to receive during life a superannuation allowance according to the scale provided by this Act if such officer or servant has attained the age of fifty years or has served for not less than twenty years. A.D. 1905.

Every gratuity granted in pursuance of this section shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

8. In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance under this Act the Council shall pay to his legal personal representatives out of the superannuation fund a sum equal to one half of the contributions made by such officer or servant under this Act. Return of moiety in certain cases.

9. At least one month's notice in writing shall be given to every member of the Council of the time at which any proposal to return contributions to an officer or servant who has been dismissed or resigns or any proposal to grant a gratuity under this Act will be considered. Notice of proposal to return contributions or grant gratuity.

10. Every superannuation allowance granted under this Act shall be payable to or in trust for the officer or servant and shall not be assignable or chargeable with his debts or other liabilities. Allowance not assignable.

11. Subject to the provisions of this Act every officer and servant in the service or employment of the Council shall contribute annually by such instalments as the Council shall require and direct for the purposes of this Act a percentage amount of his salary or wages and emoluments according to the scale provided by this Act such amount to be from time to time deducted by the Council from the salary or wages and emoluments payable to him and to be carried to the credit of and form part of the superannuation fund. Obligation of officers and servants to contribute.

12. The percentage amounts to be deducted annually for the purposes of this Act shall subject to the provisions contained in the section of this Act whereof the marginal note is "Contributions in respect of previous service" be as follows (that is to say):— Scale of contributions.

In the case of officers and servants with less than five years service or aggregated service at the passing of this Act or appointed after the passing of this Act two per centum of the annual salary or wages and emoluments;

the case of husband and wife the joint appointment is terminated owing to the misconduct of one of them be entitled to receive during life a superannuation allowance according to the scale provided by this Act if such officer or servant has attained the age of fifty years or has served for not less than twenty years. A.D. 1905.

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A.D. 1905.

In the case of officers and servants with more than five and less than fifteen years service or aggregated service at the passing of this Act two and a half per centum of the annual salary or wages and emoluments; and

In the case of officers and servants with more than fifteen years service or aggregated service at the passing of this Act three per centum of the annual salary or wages and emoluments.

Contributions in respect of previous service

13. The periods of service in the case of officers and servants who have served under any local authority or authorities to which the Acts mentioned in the section of this Act whereof the marginal note is "Reckoning service" apply or have heretofore applied shall for the purpose of ascertaining the percentage amount to be deducted annually as aforesaid be aggregated and reckoned so as to include not only their periods of service under the Council but also those under such local authority or local authorities or any one or more of them:

Provided always that in cases where such service has not been rendered to any authority or body whose duties and powers have been transferred to the Council the officers and servants of the Council having the benefit of the aggregation of the periods of service mentioned in the section last aforesaid shall in addition to the percentage amounts of contribution or deduction hereinbefore mentioned pay or contribute annually by such instalments as aforesaid for each aggregated period of ten years or part thereof a sum equivalent to one per centum of the annual salary or wages and emoluments received by such officers and servants.

Superannuation fund.

14.—(1) The Council shall establish and administer a superannuation fund to which shall be carried and credited—

(a) A sum of one hundred pounds to be raised annually in and by the general rate;

(b) All percentage amounts of salary or wages and emoluments deducted as in this Act provided;

(c) All dividends and interest arising out of the investment of the superannuation fund or any part thereof; and

(d) Such amount out of the general rate as may be required to meet any deficiency on the superannuation fund as in this Act provided.

A.D. 1905.

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Provided always that in cases where such service has not been rendered to any authority or body whose duties and powers have been transferred to the Council the officers and servants of the Council having the benefit of the aggregation of the periods of service mentioned in the section last aforesaid shall in addition to the percentage amounts of contribution or deduction hereinbefore mentioned pay or contribute annually by such instalments as aforesaid for each aggregated period of ten years or part thereof a sum equivalent to one per centum of the annual salary or wages and emoluments received by such officers and servants.

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(c) All dividends and interest arising out of the investment of the superannuation fund or any part thereof; and

(d) Such amount out of the general rate as may be required to meet any deficiency on the superannuation fund as in this Act provided.

(2) The following shall be charged upon the superannuation fund (namely):— A.D. 1905.

- (a) Superannuation allowances made in pursuance of this Act;
- (b) Contributions or parts of contributions returned or paid in pursuance of this Act.

(3) The superannuation fund shall be administered in manner following (that is to say):—

All superannuation allowances and all contributions or part contributions to be returned or paid by the Council in pursuance of this Act shall in each year be paid—

(a) In the first place out of so much of the superannuation fund as is represented by the aforesaid annual sum of one hundred pounds raised in and by the general rate;

(b) In the event of such annual sum not being sufficient to fully satisfy such payments then to the extent to which it is insufficient for that purpose out of so much of the superannuation fund as is represented by the percentage amounts of salary or wages and emoluments deducted by the Council in pursuance of this Act and placed to the credit of the superannuation fund during the year in which such payments shall accrue due and become payable;

(c) In the event of such annual sum together with such percentage amounts not being sufficient to fully satisfy such payments then to the extent to which such sums are insufficient for that purpose out of such portion of the superannuation fund as is represented by the dividends and interest (if any) which have accrued during the year in which such payments shall accrue due and become payable;

(d) In the event of such annual sum and percentage amounts together with the amount of such dividends and interest (if any) not being sufficient to fully satisfy such payments then to the extent to which such sums are insufficient for that purpose out of a part of the superannuation fund not exceeding in the aggregate a sum equivalent to ten per centum of the amount standing to the credit of the superannuation fund on

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(a) In the first place out of so much of the superannuation fund as is represented by the aforesaid annual sum of one hundred pounds raised in and by the general rate;

(b) In the event of such annual sum not being sufficient to fully satisfy such payments then to the extent to which it is insufficient for that purpose out of so much of the superannuation fund as is represented by the percentage amounts of salary or wages and emoluments deducted by the Council in pursuance of this Act and placed to the credit of the superannuation fund during the year in which such payments shall accrue due and become payable;

(c) In the event of such annual sum together with such percentage amounts not being sufficient to fully satisfy such payments then to the extent to which such sums are insufficient for that purpose out of such portion of the superannuation fund as is represented by the dividends and interest (if any) which have accrued during the year in which such payments shall accrue due and become payable;

(d) In the event of such annual sum and percentage amounts together with the amount of such dividends and interest (if any) not being sufficient to fully satisfy such payments then to the extent to which such sums are insufficient for that purpose out of a part of the superannuation fund not exceeding in the aggregate a sum equivalent to ten per centum of the amount standing to the credit of the superannuation fund on

A.D. 1905.
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the 31st day of March immediately preceding the dates at which such payments shall accrue due and become payable; and

(e) In the event of the aggregate of such amounts as aforesaid not being sufficient to fully satisfy such payments then to the extent to which such aggregated sums are insufficient out of the portion of the superannuation fund taken from the general rate to make up the deficiency.

Investment
of super-
annuation
fund.

15. The Council shall at their discretion be empowered to invest in such securities as may be authorised by law for the investment of trust funds any such part of the superannuation fund as may not in their opinion be required to meet payments arising in pursuance of the provisions of this Act.

Saving for
existing
officers and
servants.

16. Any officer or servant in the service or employment of the Council at the time of the passing of this Act may at any time within three months from the date of such passing signify in writing to the Council his intention not to avail himself of the provisions of this Act and in that event it shall not be obligatory on him notwithstanding anything in this Act contained to make any contributions or submit to any deductions from his salary or wages under this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Act Any officer or servant who has given such notice as aforesaid shall if entitled immediately before the date of the passing of this Act to any benefits conferred by the Superannuation (Metropolis) Act 1866 or the Poor Law Officers' Superannuation Act 1896 or both remain subject to the provisions of such Acts as if this Act had not been passed and those provisions shall for the purpose of this enactment continue in force notwithstanding the provisions of the section of this Act whereof the marginal note is "Certain Acts to cease to apply."

Certain Acts
to cease to
apply.

17. The Superannuation (Metropolis) Act 1866 and the Poor Law Officers' Superannuation Act 1896 shall cease to apply to the Council upon the passing of this Act but this provision shall not affect the payment of any superannuation allowance granted before the commencement of this Act nor any right or liability acquired or accrued nor anything duly done or suffered before the commencement of this Act.

A.D. 1905.
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18. Upon the Poor Law Officers' Superannuation Act 1896 ceasing to apply to the Council in the case of any officer or servant the Council shall repay to such officer or servant out of the general rate any contributions made by such officer or servant and received by the Council under the provisions of that Act as applied by the London (Existing Officers) Scheme 1900.

A.D. 1905.
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Return of contributions made under Act of 1896 and London (Existing Officers) Scheme 1900.

19. Any question which may arise between the Council and any officer or servant as to the right to or the amount of a superannuation allowance or the amount of the contribution of such officer or servant shall in default of agreement be submitted to arbitration in accordance with the provisions of the Arbitration Act 1889.

Arbitration.

20. Any scheme for the establishment of a superannuation fund under this Act shall not come into operation until the Council shall in respect of that fund have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply as if—

Application of provisions of Friendly Societies Act 1896.

- (a) The Council were a society to which that Act applies and were the trustees of such society;
- (b) The scheme were the rules of such society;
- (c) The superannuation fund were the fund of such society; and
- (d) The contributors to the fund were the members of such society.

21. The Council shall in addition to the other powers conferred upon them by this Act but not in substitution therefor be empowered at their discretion to contribute quarterly out of the general rate to the funds of a society registered under the Friendly Societies Act 1896 constituted from amongst their servants or some of them for the purpose of providing by contributions or subscriptions of the members of such society with the aid of donations or subscriptions from the Council and others for amongst other matters—

Power to contribute to provident fund.

The relief or maintenance of the members of such society during sickness or whilst suffering or recovering from the effects of an accident; or

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Power to contribute to provident fund.

The relief or maintenance of the members of such society during sickness or whilst suffering or recovering from the effects of an accident; or

A.D. 1905.

The relief or maintenance of the orphan children of deceased members of such society; or

Insuring the payment of money on the death of a member; or

The funeral expenses of a member or the wife of a member of such society.

In the event of the Council contributing to such society as aforesaid then and in such case they shall have power if they think fit without any further authority than is contained in this section and on such terms and conditions and subject to such restrictions and reservations in every respect as they think expedient to contribute to the funds of such society in manner following (that is to say):—

They may contribute quarterly out of the general rate such a sum as they may from time to time determine not exceeding such an amount as would be equivalent to an aggregate of twopence for each and every weekly contribution to be made to the funds of such society of not less than fourpence by the members thereof respectively.

Membership
not to be
compulsory.

22. Nothing in this Act contained shall render it compulsory upon any servant of the Council to become a member of any society which may be constituted as aforesaid.

Costs of Act.

23. All the costs charges and expenses preliminary and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate.

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A.D. 1905.

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